



CHAPTER 24.

An Act to make temporary amendments of the Parliamentary Electors (War-Time Registration) Act, 1943, as to the qualifying date for an election and the qualifications required for registration in the civilian residence and business premises registers, and to provide for matters consequential thereon. [13th July 1944.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In relation to any election initiated while this section is in force, the Parliamentary Electors (War-Time Registration) Act, 1943 (hereinafter referred to as the principal Act), shall have effect subject to the following modifications, that is to say :—

(a) subsection (4) of section one (which provides that the qualifying date shall be the last day of the month next before that in which the election is initiated) shall have effect as if the words "but one" were inserted therein after the word "next";

(b) for subsection (1) of section five (which defines the qualifications required for registration in the civilian residence register), there shall be substituted the following subsection :—

"(1) Subject to the provisions of this Part of this Act, a person, being on the qualifying date a British subject of full age and not subject to any legal incapacity, shall be entitled to be registered in the civilian residence register for an election in any

Qualifying date and qualifying period.
6 & 7 Geo. 6.
c. 48.

constituency if on that date that person is registered in the National Register as residing at a place in the constituency " ;

- (c) in subsection (1) of section six (which defines the qualifications required for registration in the business premises register), the following words " and has throughout the period of two months ending with that date occupied those business premises or some other business premises in the same constituency " shall not have effect.

(2) This section shall expire with the thirty-first day of December, nineteen hundred and forty-five :

Provided that

- (a) if at any time while this section is in force, not being less than two months before the date on which it would otherwise expire, the Secretary of State is satisfied that sufficient staff and facilities are available for the operation of the principal Act as originally enacted, he shall make an order advancing the date of expiration to a date specified in the order ;
- (b) if at any such time a resolution is passed by each House of Parliament postponing the date of expiration to a date specified in the resolution, the date of expiration shall be postponed accordingly.

52 & 53 Vict. c. 63. (3) On the expiration of this section, subsection (2) of section thirty-eight of the Interpretation Act, 1889, shall apply as if this section had then been repealed by another enactment ; and where the day fixed for nomination at any election occurs before the expiration of this section, but the poll has not taken place before the expiration of this section, this section shall continue in force for the purposes of the election.

Consequential
amendments.

2.—(1) The said section five of the principal Act shall have effect as respects elections initiated after the date of the expiration of the last foregoing section as if in paragraph (b) of subsection (1) of the said section five (which provides for continuing the qualification of an elector who removes from one constituency without obtaining a qualification in another) the reference to the appointed day were a reference to the said date.

(2) Electoral registration regulations shall not be made under subsection (3) of section twelve of the principal Act (which provides for altering the procedure for compilation of the register as soon as the Secretary of State is satisfied that sufficient staff and facilities are available) so as to have effect while the last foregoing section is in force.

3. This Act may be cited as the Parliamentary Electors (War- Short title
Time Registration) Act, 1944, and may be cited together with the and
principal Act as the Parliamentary Electors (War-Time Regis- citation.
tration) Acts, 1943 and 1944. and shall be included among the
Acts which may be cited as the Representation of the People Acts.

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